Montgomery County District Court

Cause No. 2024-CV-0046

Billy Jones, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Oral Deposition of Billy Jones

Date:	March 11, 2024
Location:	Offices of Dunn & Acosta LLP
Examining attorney:	Marilyn Fox, Ashford & Lyle LLP
Defending attorney:	Candice Smith, Dunn & Acosta LLP

Q: Please state your full name for the record.

A: I'd prefer to give my name as a placeholder for this exercise, so let's say Plaintiff Witness One.

Q: Understood. Plaintiff, where were you when the collision happened?

A: I was driving through a four-way intersection in Houston, Texas, heading east on a road with a green light.

Q: Can you describe what you saw as you entered the intersection?

A: A vheicle came from the cross street on my right side. I had the right of way, I believe. I tried to brake, but the other car struck the driver's side of my vehicle before I could stop.

Q: How fast were you traveling at that point?

A: I'd say I was going the posted speed, maybe a little under it, because the light had just turned green and I was accelerating gently.

Q: After the impact, what did you notice about your body?

A: My right shoulder hurt immediately. I was holding the steering wheel and felt a sharp pain when my arm was jerked. I couldn't lift my arm above my shoulder without pain.

Q: Did you seek medical attention that day?

A: Yes. Paramedics checked me at the scene, and I was taken to an urgent care clinic later that afternoon for an X-ray and an exam.

Q: What treatment have you received since then?

A: I've been attending physical therapy about three times a week. I was also given a sling for a while and prescribed anti-inflammatory medication. Recently, my doctor discussed whether I might need an injection if the therapy doesn't help.

Q: How has the injury affected your daily activities?

A: It's been hard. I used to coach my kid's soccer team on weekends, and I've had to hand that over to my wife. Simple things like reaching for a shelf, combing my hair, or lifting groceries are difficult. I also had to stop my weekend woodworking hobby.

Q: Have you been able to return to your job?

A: I returned to work after a few weeks, but I'm on modified duty. I can't do the lifting I used to do, so I work mostly at a desk now.

Q: Before this accident, did you have any prior problems with that shoulder?

A: No, not that I can recall. I was active and had no ongoing issues with it.

Q: Thank you. Nothing further at this time.